

LEGAL NOTICES

Las Cruces Bulletin - your legal publication for Las Cruces and Doña Ana County, New Mexico

2012.

ZIA TRUST, INC.
Personal Representative of
the Estate of JON Wynne,
Deceased

BY:
/s/ MARIANNE GILLESPIE
Trust Administrator

Pub # 11571
Dates 2/17, 2/24, 2012

NOTICE OF PUBLIC HEARING

A Public Hearing will be held during the Regular Meeting of the Board of County Commissioners of Doña Ana County at 9:00 a.m. on Tuesday, February 28, 2012, in the Commission Chambers on the 1st floor of the Doña Ana County Government Center, 845 N. Motel Blvd., Las Cruces NM, on Liquor License Application number A-801939, requesting approval for transfer of location/expansion of existing premises by more than 25% to Sundog, Inc., DBA, Ray's Liquor Store, 5155 Doña Ana Road, Las Cruces, NM, which has received Preliminary Approval by the Director of the Alcohol and Gaming Division of the New Mexico Regulation and Licensing Department.

Pub # 11572
Dates 2/17, 2012

NOTICE OF INTENT TO ADOPT

The City Council of The City of Las Cruces, New Mexico, Hereby Gives Notice of Its Intent to Adopt The Following Ordinances at a Regular City Council Meeting to be Held on March 5, 2012:

1. Council Bill No. 12-028; Ordinance No. 2650: An Ordinance to Repeal Section III Subsection 3 of Ordinance 2447 in Order to Correct a Condition to Accurately Reflect the Motion Made by Council During a Las Cruces City Council Meeting Held on April 28, 2008, Affecting Parcel 32 of the High Range PUD.

2. Council Bill No. 12-029; Ordinance No. 2651: An Ordinance Approving Multiple Zone Changes for 120.535 + Acres of Land Located Within the Rancho Del Rey Master Planned Area; Generally East of Roadrunner Parkway, North and South of Settlers Pass; Parcel ID# 02-38952. Submitted by Underwood Engineering on Behalf of Eddie Binns, Property Owner (Z2814).

Copies Are Available for

Inspection During Working Hours at the Office of the City Clerk. Witness My Hand and Seal of the City of Las Cruces on this the 14th day of February 2012.

Esther Martinez, CMC
City Clerk

Pub # 11574
Dates 2/17, 2012

STATE OF NEW MEXICO COUNTY OF DOÑA ANA THIRD JUDICIAL DISTRICT COURT

No. CV-2011-3026
Judge: Martin

BANK OF THE RIO GRANDE, N.A. a Banking Corporation, Plaintiff

vs.

EMILIO M. PEREZ,
JEANETTE D. PEREZ,
ISABEL ESQUIBEL and
JOHN DOE I and JANE
DOE I; and STATE OF NEW
MEXICO TAXATION &
REVENUE DEPARTMENT,
Defendants.

NOTICE OF SALE

Under and by virtue of a judgment and decree of foreclosure of a real estate mortgage issued out of the District Court of Doña Ana County, New Mexico, on or about the 9th day of February, 2012 in the above-entitled cause, in which judgment the Plaintiff, Bank of the Rio Grande, N.A., was awarded a judgment against the Defendants, Emilio D. Perez and Jeanette D. Perez, in the principal amount of \$136,977.71, as of January 18, 2012, together with interest accrued to January 18, 2012 in the amount of \$6,215.33, interest accruing after January 18, 2012 at the rate of 18% per annum, for a per diem interest of \$67.55 per day, together with all costs of this action in the amount of \$383.92 and attorneys fees in the amount of \$2,351.69 as set forth in said judgment, and by which decree I am, among other things, commanded to sell the land and improvements thereon described in the real estate mortgage, which real estate is more particularly described in the judgment in said cause and as hereinafter described.

The subject matter of the above action is a suit brought by the Plaintiff upon a Promissory Note, Commercial Debt Modification Agreement and Renewal Promissory Note from the Defendants Emilio M. Perez and Jeanette D. Perez, and for foreclosure of the mortgage

given to secure said notes.

NOW, THEREFORE, notice is hereby given that on the 15th day of March, 2012, at the hour of 10:00 a.m., at the front entrance of the Third Judicial District Court, Doña Ana County Courthouse, 201 W. Picacho Avenue, Suite A, Las Cruces, New Mexico, I will, in obedience to said judgment and decree of foreclosure, sell, the following-described real estate, to-wit:

Lot Numbered 22 of Mesa Manor Subdivision Phase 2, Las Cruces, New Mexico, as the same is shown and designated on the plat of said Mesa Manor Subdivision Phase 2, filed in the office of the County Clerk of Doña Ana County, New Mexico on December 10, 2005 in Plat Book 21, Folio 431-432.

Having a common street address of: 4249 Fireweed Drive, Las Cruces, NM 88007.

Together with the hereditaments and appurtenances belonging to said real estate in any way pertaining to said premises, to satisfy the Plaintiff's judgment in the amount of \$143,193.04, together with interest thereon from January 18, 2012 to date of sale in the amount of \$3,850.35, and attorneys fees and costs in the amount of \$2,735.61.

Said sale shall be to the highest bidder for cash or certified funds; provided, however, that the Plaintiff Bank of the Rio Grande, N.A. shall be entitled to bid all or any part of its judgment. Said sale shall also be without warranty as to title, possession or quiet possession.

DATED this 14th day of February, 2012.

/s/
JOSEPH M. HOLMES,
Special Master

Pub # 11576
Dates 2/17, 2/24, 3/2, 3/9, 2012

STATE OF NEW MEXICO COUNTY OF DOÑA ANA THIRD JUDICIAL DISTRICT COURT

No. CV-12-229
JUDGE James T. Martin

IN THE MATTER OF THE PETITION OF Erika Kristina Montoya FOR CHANGE OF NAME

NOTICE OF PETITION TO CHANGE NAME

NOTICE IS HEREBY GIVEN THAT Erika Kristina Montoya, a resident of the City of Las Cruces, County of Doña Ana,

State of New Mexico, and over the age of fourteen years, has filed a Petition to Change Name in the Third Judicial District Court, Doña Ana County New Mexico, wherein he seeks to change his name from Erika Kristina Montoya to Erika Kristina Araiza, and that this Petition will be heard before the Honorable James T. Martin, District Judge, on the 12 day of March, 2012, at the hour of 1:30 p.m., at the Doña Ana County Courthouse, 201 W. Picacho, Las Cruces, NM 88001.

Respectfully Submitted,

/s/ Erika Kristina Montoya
Petitioner Pro Se
4430 N. Valley Drive
Las Cruces, NM 88007
575-642-3206

Pub # 11577
Dates 2/17, 2/24, 2012

STATE OF NEW MEXICO COUNTY OF DOÑA ANA THIRD JUDICIAL DISTRICT COURT

No. CV-12-228
JUDGE Manuel I. Arrieta

IN THE MATTER OF THE PETITION OF Andres Adrian Montoya FOR CHANGE OF NAME

NOTICE OF PETITION TO CHANGE NAME

NOTICE IS HEREBY GIVEN THAT Erika Kristina Montoya, a resident of the City of Las Cruces, County of Doña Ana, State of New Mexico, and over the age of fourteen years, has filed a Petition to Change Name in the Third Judicial District Court, Doña Ana County New Mexico, wherein he seeks to change his name from Andres Adrian Montoya to Andres Adrian Araiza, and that this Petition will be heard before the Honorable Manuel I. Arrieta, District Judge, on the 13th day of March, 2012, at the hour of 1:30 p.m., at the Doña Ana County Courthouse, 201 W. Picacho, Las Cruces, NM 88001.

Respectfully Submitted,

/s/ Andres Adrian Montoya
Petitioner Pro Se
4430 N. Valley Drive
Las Cruces, NM 88007
575-642-3206

Pub # 11578
Dates 2/17, 2/24, 2012

PRIMARY ELECTION PROCLAMATION

Pursuant to the Primary Election Law, NMSA 1978, Sections 1-8-10 to -52 (1969, as amended through 2009), and the Presidential Primary Act, NMSA 1978, Sections 1-15A-1 to -11 (1977, as amended through 2011), I, Susana Martinez, Governor of the State of New Mexico, by virtue of the authority vested in me, do hereby issue the following proclamation:

That a Primary Election is called to be held throughout the State of New Mexico and in each county and precinct thereof on June 5, 2012;

That a Primary Election shall be applicable to the following political parties: the Democratic Party and the Republican Party; and

That the Primary Election shall be for the purpose of permitting the Democratic Party and the Republican Party to nominate candidates for the following offices:

FEDERAL OFFICES ONE UNITED STATES SENATOR SIX-YEAR TERM THREE UNITED STATES REPRESENTATIVES

District 1: Bernalillo county precincts 2 through 79, 81 through 83, 86 through 92, 94 through 99, 101 through 114, 116, 119 through 125, 131 through 144, 150 through 154, 161 through 166, 170, 171, 180 through 187, 191 through 197, 211, 212, 214 through 217, 221, 223 through 226, 241 through 246, 251 through 258, 271 through 275, 278, 281 through 287, 289 through 308, 311 through 318, 321 through 324, 326 through 333, 341 through 347, 351 through 358, 371 through 375, 381 through 387, 400 through 456, 461 through 466, 471 through 478, 480 through 500, 502 through 573 and 601 through 603; Sandoval county precincts 1 through 5, 28, 29, 38, 52, 55 through 57, 64, 74 and 76; Santa Fe county precincts 15, 73 and 84; Torrance county; and Valencia county precincts 6, 16, 22, 28 and Census tabulation block 3506119703031019 in 36, as defined in the Final Judgment and Order in the matter of Egolf, et al. v. Duran, et al., First Judicial District Court cause No. D-101-CV-2011-02942 (consolidated).

TWO-YEAR TERM

District 2: Bernalillo county precinct 93; Catron county; Chaves county; Cibola county; De Baca county; Dona Ana county; Eddy county; Grant county; Guadalupe county; Hidalgo county; Lea county; Lincoln county; Luna county; McKinley county precincts 26, 27, 29 and 30; Otero county; Roosevelt county precincts 3 through 6, 10, 11, 19 and all of 2 except for Census tabulation block 350410002001111; Sierra county; Socorro county; and Valencia county precincts 1 through 5, 7 through 15, 17 through 21, 23 through 27, 29 through 35, 37 through 41 and all of 36 except for Census Tabulation block 350611973031019 as defined in the Final Judgment and Order in the matter of Egolf, et al. v. Duran, et al., First Judicial District Court cause No. D-101-CV-2011-02942 (consolidated).

TWO-YEAR TERM

District 3: Bernalillo county precincts 1, 80, 84, 85, 115, 117, 118 and 127 through 129; Colfax county; Curry county; Harding county; Los Alamos county; McKinley county precincts 1 through 25, 28, 31 through 50 and 52 through 59; Mora county; Quay county; Rio Arriba county; Roosevelt county precincts 1, 7 through 9, 12, 13, 15, 17, 18, 21 and Census tabulation block 350410002001111 in 2; San Juan county; San Miguel county; Sandoval county precincts 6 through 27, 30 through 37, 39 through 51, 53, 54, 58 through 63, 65 through 73, 75 and 78 through 86; Santa Fe county precincts 1 through 14, 16 through 72, 74 through 83 and 85 through 88; Taos county; and Union county as defined in the Final Judgment and Order in the matter of Egolf, et al. v. Duran, et al., First Judicial District Court cause No. D-101-CV-2011-02942 (consolidated).

TWO-YEAR TERM

STATE, DISTRICT AND METROPOLITAN OFFICES ONE JUDGE OF THE COURT OF APPEALS TO FILL UNEXPIRED TERM

TWO MEMBERS OF THE PUBLIC REGULATION COMMISSION

District 1: Bernalillo county precincts 4 through 18, 20 through 30, 39, 86, 107, 108, 119 through 121, 125, 131, 150 through 154, 161 through 166, 180 through 187, 191 through 197, 211, 212, 215, 216, 241 through 246, 251 through 258, 271 through 275, 278, 281 through 287, 289 through 302, 304 through 308, 311 through 318, 321 through 324, 326 through 333, 341 through 347, 351 through 358, 371 through 375, 381 through 387, 400 through 456, 461 through 466, 471 through 478, 480 through 500, 502 through 550, 560 through 566, 568, 569 and 601 through 603; and Sandoval county precincts 11 through 13 and 57 as defined in the Final Judgment and Order in the matter of Egolf, et al. v. Duran, et al., First Judicial District Court cause no. D-101-CV-2011-02942 (consolidated).

FOUR YEAR TERM

District 3: Bernalillo county precincts 1 through 3, 19, 57, 68 through 70, 78 through 85, 87, 89, 110 through 118, 127 through 129, 134, 170, 171 and 567; Los Alamos county; Mora county precincts 1, 2 and 4 through 6; Rio Arriba county precincts 1 through 23, 28 and 31 through 42; San Miguel county precinct 23; Sandoval county precincts 1 through 6, 28 through 56, 58 through 76 and 80 through 86; Santa Fe county precincts 1 through 11, 13, 14, 16, 17, 20 through 71, 74 through 83 and 86 through 88; and Taos county as defined in the Final Judgment and Order in the matter of Egolf, et al. v. Duran, et al., First Judicial District Court cause no. D-101-CV-2011-02942 (consolidated).

FOUR YEAR TERM

FORTY TWO MEMBERS OF THE STATE SENATE Districts 1-42 as defined in the Final Judgment and order issued by the court in the matter of Egolf, et al. v. Duran, et al., First Judicial District Court cause no. D-101-CV-2011-02942 (consolidated).

FOUR YEAR TERM

SEVENTY MEMBERS OF THE STATE HOUSE OF REPRESENTATIVES

Districts 1-70, as will be defined upon resolution of the appeal of the Final Judgment and Order issued by the court in the matter of Egolf, et al. v. Duran, et al., First Judicial District Court cause no. D-101-CV-2011-02942 (consolidated).

TWO YEAR TERM

TEN JUDICIAL DISTRICT JUDGES 2nd Judicial District, Divisions 6, 19 and 21

TO FILL UNEXPIRED TERM

3rd Judicial District, Divisions 2 and 4

TO FILL UNEXPIRED TERM

5th Judicial District, Division 9

TO FILL UNEXPIRED TERM

6th Judicial District, Division 6

TO FILL UNEXPIRED TERM

8th Judicial District, Division 2 and 3

TO FILL UNEXPIRED TERM

9th Judicial District, Division 4

TO FILL UNEXPIRED TERM

FOURTEEN DISTRICT ATTORNEYS

District 1
District 2
District 3
District 4
District 5
District 6
District 7
District 8
District 9
District 10
District 11
Division 1 (San Juan)
Division 2 (McKinley)
District 12
District 13

FOUR-YEAR TERM
FOUR-YEAR TERM
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FOUR-YEAR TERM
FOUR-YEAR TERM

ONE JUDGE OF THE BERNALILLO COUNTY METROPOLITAN COURT

Division 17

TO FILL UNEXPIRED TERM

FOUR MAGISTRATE JUDGES

Dona Ana County, Division 3
Lea County, Division 4
San Juan County, Division 4
Taos County, Division 2

TO FILL UNEXPIRED TERM
TO FILL UNEXPIRED TERM
TO FILL UNEXPIRED TERM
TO FILL UNEXPIRED TERM

SEVEN MEMBERS OF THE PUBLIC EDUCATION COMMISSION

District 1: composed of Bernalillo county precincts 20 through 30, 32 through 67, 70 through 77, 81 through 83, 88, 90 through 92, 94 through 99, 109 through 114, 119, 120, 134, 136 through 144, 257 and 258, as enumerated in laws of 2011, 1st Special Session, Chapter 4, Section 6.

FOUR YEAR TERM

District 3: composed of Bernalillo county precincts 2 through 19, 68, 69, 78, 79, 84 through 86, 89, 101 through 108, 116, 121 through 125, 131 through 133, 135, 150 through 154, 161 through 166, 171, 180 through 187, 191 through 197, 211, 212, 214 through 217, 221, 223 through 226, 241 through 246, 251 through 256, 271 through 275, 278, 281 through 287, 311 through 315, 326, 327, 341 through 347, 351 through 358, 371 through 375, 381 through 387, 400 through 405, 411, 412, 431 through 439, 441 through 446 and 455 as enumerated in laws of 2011, 1st Special Session, Chapter 4, Section 8.

TO FILL UNEXPIRED TERM

District 4: composed of Bernalillo county precincts 1, 80, 87, 115, 117, 118, 127 through 129, 170, 303, 553 through 559 and 570 through 573; Los Alamos county; Sandoval county precincts 1 through 23, 27 through 76 and 78 through 86; and Santa Fe county precincts 11, 12, 15 through 19, 63, 72, 73, 80, 82, 84 and 85, as enumerated in laws of 2011, 1st Special Session, Chapter 4, Section 9.

FOUR-YEAR TERM

District 5: composed of McKinley county; Rio Arriba county precincts 24 and 29; San Juan county; and Sandoval county precincts 24 through 26, as enumerated in laws of 2011, 1st Special Session, Chapter 4, Section 10.

TO FILL UNEXPIRED TERM

District 8: composed of Bernalillo county precincts 551 and 552; Chaves county precincts 1 through 7, 9 through 16, 21 through 25, 31 through 36, 41 through 47, 51, 52, 61 through 63, 71 through 73, 81 through 85, 90 through 94 and 101 through 103; De Baca county; Guadalupe county; Lincoln county; Mora county; Otero county precincts 2 through 40; San Miguel county; Socorro county precinct 12; and Torrance county, as enumerated in laws of 2011, 1st Special Session, Chapter 4, Section 13.

FOUR YEAR TERM

District 9: composed of Chaves county precinct 104; Curry county; Eddy county; Harding county; Lea county; Quay county; Roosevelt county; and Union county, as enumerated in laws of 2011, 1st Special Session, Chapter 4, Section 14.

FOUR YEAR TERM

District 10: composed of Colfax county; Rio Arriba county precincts 1 through 23, 25 through 28 and 30 through 42; Santa Fe county precincts 1 through 10, 13, 14, 20 through 62, 64 through 71, 74 through 79, 81, 83 and 86 through 88; and Taos county as enumerated in laws of 2011, 1st Special Session, Chapter 4, Section 15.

FOUR-YEAR TERM

COUNTY OFFICES
BERNALILLO COUNTY
THREE COUNTY COMMISSIONERS
District 2
District 3
District 4
ONE COUNTY CLERK
ONE COUNTY TREASURER

FOUR-YEAR TERM
FOUR-YEAR TERM
FOUR-YEAR TERM
FOUR-YEAR TERM
FOUR-YEAR TERM

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